16. INCOME TAXES

PBF Holding is a limited liability company treated as a “flow-through” entity for income tax purposes. Accordingly, there is generally no benefit or expense for federal or state income tax in the PBF Holding financial statements apart from the income tax attributable to two subsidiaries acquired in connection with the acquisition of Chalmette Refining and PBF Ltd. that are treated as C-Corporations for income tax purposes, with the tax provision calculated based on the effective tax rate for the periods presented.

The reported income tax expense (benefit) in the PBF Holding Consolidated Statements of Operations consists of the following:

(in millions)	**December 31, 2023**	**December 31, 2022**	**December 31, 2021**
Current income tax (benefit) expense	$ (1.8)	$ 0.5	$ 0.5
Deferred income tax expense (benefit)	3.7	(3.2)	(14.5)
Total income tax expense (benefit)	$ 1.9	$ (2.7)	$ (14.0)

A summary of the components of PBF Holding’s deferred tax assets and deferred tax liabilities consists of the following:

(in millions)	**December 31, 2023**	**December 31, 2022**
Deferred tax assets		
Net operating loss carry forwards	$ 0.9	$ 2.2
Other	0.6	0.6
Total deferred tax assets	1.5	2.8
Valuation allowance	—	—
Total deferred tax assets, net	1.5	2.8
Deferred tax liabilities		
Property, plant and equipment	15.4	16.0
Inventory	10.9	7.8
Total deferred tax liabilities	26.3	23.8
Net deferred tax liability	$ (24.8)	$ (21.0)